

Consulting Services Agreement

THIS AGREEMENT is entered into on 02/02/2025 by Naseer Mohammed S and between BYTEXL TECHED PRIVATE LIMITED, a registered company located at Samrah Plaza, St. Marks Road, Bengaluru, Karnataka, India - 560001, (hereby known as the "Company") and;

Naseer Mohammed S, whose address is WHEREAS, the Company desires to hire the services of the Educator to render services as an Educator.

NOW, THEREFORE, for and in consideration of the mutual covenants made by the parties hereto, the Parties to this Agreement agree as follows:

Term and Effective Period: This Agreement shall commence on 04-Feb-2025 and shall remain in effect until the 18-Feb-2025, unless terminated earlier as provided herein. Either party may terminate this Agreement upon providing a minimum of 2 weeks written notice to the other party, regardless of the reason for termination, which may include feedback concerns or the provision of substandard services.

Consulting Services

The Educator agrees that he/she shall provide his/her expertise to the Company for all things pertaining to the scope of consulting services (the "Consulting Services").

Compensation In accordance with the provision of Consulting Services, the Parties hereby agree that the compensation details shall be stipulated in the work order. Said work order shall outline the appropriate remuneration terms and rates, reflecting the distinct scope, objectives, and expectations of each individual project. This approach ensures a precise and equitable compensation structure, duly tailored to the specific requirements and obligations of the assignment.

Intellectual Property Rights in Work Product The Parties acknowledge and agree that the Company will hold all intellectual property rights in any work product resulting from the Consulting Services including, but not limited to, copyright and trademark rights. The Educator agrees not to claim any such ownership in such work product's intellectual property at any time prior to or after the completion and delivery of such work product to the Company.

Confidentiality and Nondisclosure Agreement The Educator shall not disclose to any third party any details regarding the Company's business, including, without limitation any information regarding any of the Company's customer information, business plans, pricing, or planned price points (the "Confidential Information"), (ii) make copies of any Confidential Information or any content based on the concepts contained within the Confidential Information for personal use or for distribution unless requested to do so by the Company, or (iii) use Confidential Information other than solely for the benefit of the Company.

Noncompetition During the term of this Agreement, the Educator shall not engage, directly or indirectly, as an employee, officer, manager, partner, Educator, agent, owner or in any other capacity, in any competition with the Client or any of its subsidiaries, including any company engaged in this type of business.

Non-solicitation of Customers

During the term of this Agreement and for a period of six (6) months following the termination of this Agreement, the Educator will not, directly or indirectly, solicit or attempt to solicit any business from any of the Company's clients, prospects, employees, or contractors.

Non-solicitation of Employees

During the term of this Agreement and for a period of six (6) months following the termination of this Agreement, the Educator will not, directly or indirectly, recruit, solicit, or induce, or attempt to recruit, solicit, or induce, any of the Company's employees or contractors for work at another company.

Indemnification

The Educator hereby agrees to indemnify, defend, and hold harmless the Company, including its affiliates, subsidiaries, officers, directors, employees, agents, successors, and assigns, from and against any and all claims, demands, losses, damages, liabilities, costs, and expenses, including reasonable attorney's fees and expenses, arising out of or resulting from:

- Any negligent or wilful acts, errors, or omissions by the Consultant, its employees, agents, or subcontractors in connection with the performance of services under this Agreement;
- Any breach by the Consultant of its representations, warranties, covenants, or obligations under this Agreement;
- Any infringement, misappropriation, or violation of any intellectual property rights or other rights of any third party by the Consultant, its employees, agents, or subcontractors in the course of performing services under this Agreement; or
- Any bodily injury, personal injury, or property damage caused by the Consultant, its employees, agents, or subcontractors in the performance of services under this Agreement.

The Company shall provide the Consultant with prompt written notice of any claim, demand, or action for which indemnification is sought under this clause. The Consultant shall have the right, but not the obligation, to assume and control the defence and settlement of any such claim, demand, or action at its own expense, and the Company shall cooperate fully with the Consultant in such defence or settlement. The Company may, at its own expense, participate in the defence or settlement of any such claim, demand, or action with its own counsel, but the Consultant shall retain the sole right to control the defence or settlement thereof.

No Modification Unless in Writing

No modification or warranties in relation to this Agreement shall be valid unless in writing and agreed upon by both Parties.

Applicable Law

This Consulting Agreement and the interpretation of its terms shall be governed by and construed in accordance with the laws of the State of Telangana, Income-tax Act 1961, and any other law as applicable.

IN WITNESS WHEREOF, by execution by the parties below, this Service-Level Agreement will form a part of the Contract.



FOR BYTEXL TECHED PVT. LTD.

Signature:

Mounika k

Consultant Name: Naseer Mohammed S

Signature: *S. Naseer Mohammed S.*